

PUNJAB PUBLIC SERVICE COMMISSION
COMBINED COMPETITIVE EXAMINATION FOR
RECRUITMENT TO THE POSTS OF
PROVINCIAL MANAGEMENT SERVICE -2019

SUBJECT: LAW (PAPER-I)

TIME ALLOWED: THREE HOURS

MAXIMUM MARKS: 100

NOTE: Attempt SEVEN Questions in All. TWO from Part-I, ONE Each from Parts-II and III and THREE from Part-IV including Question No. 12 which is Compulsory.

PART-I
(The Code of Civil Procedure 1908)

- Q. No. 1:** How can a person challenge the validity of a judgment, decree or order which is obtained through fraud or misrepresentation or which is bad for want of jurisdiction? **(15Marks)**
- Q. No. 2:** What are the inherent powers of civil court? How and at what time can the inherent jurisdiction be invoked? **(15Marks)**
- Q. No. 3:** Describe the grounds on the basis of which you can seek setting aside of ex-parte proceedings and decree? **(15Marks)**
- Q. No. 4:** Briefly distinguish the salient features of review, revision and appeal in civil cases. **(15Marks)**

PART-II
(The Limitation Act 1908)

- Q. No. 5:** 'Where once time has begun to run, no subsequent disability or inability stops it'. Discuss in the light of relevant law. Is there any exception to the rule? **(10Marks)**
- Q. No. 6:** Write a comprehensive note on legal disability? **(10Marks)**

PART-III
(The Registration Act 1908)

- Q. No. 7:** State the law relating to the priority of a registered deed over an unregistered document. **(10Marks)**
- Q. No. 8:** What are the rules regarding presenting the document for registration and discuss the procedure on admission and denial or execution respectively? **(10Marks)**

PART-IV
(The Qanoon e Shahadat Order 1984)

- Q. No. 9:** What is meant by secondary evidence? In what circumstances secondary evidence will be admissible? **(15Marks)**
- Q. No. 10:** Explain "Relevant Fact" when facts not otherwise relevant become relevant? **(15Marks)**

Q. No. 11: What is dying declaration? Who can record it and how it is recorded? What is its evidentiary value? **(15Marks)**

Q. No. 12: Write short notes on the following:

(10 + 10 Marks)

- a) Standard of proof in civil cases
- b) Doctrine of election: Approbate and reprobate



CSS VISTA

WITH SADIA ZAHOOR
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SUBJECT: LAW (PAPER-II)

TIME ALLOWED: THREE HOURS

MAXIMUM MARKS: 100

NOTE: Attempt TWO Questions Each from Part-I and Part-II and ONE Question from Part-III.

PART-I

Q. No. 1: Describe kinds of punishment within the scheme of Pakistan Penal Code, 1860.
(20Marks)

Q. No. 2: Define the following: (5x4=20 Marks)

- | | |
|----------------|----------------------|
| a) Judge | b) Public Servant |
| c) Counterfeit | d) Valuable Security |
| e) Document | |

Q. No. 3: (a) What is Wrongful Restraint and Wrongful Confinement? Please explain the two with illustrations and its punishments?

(b) Please define the Criminal Force and Assault along with illustrations.

(10 + 10 Marks)

Q. No. 4: (a) What is Fasad-Fil-Arz? Under which provision of law the new clause of this offence has been added in Pakistan Penal Code? Whether it includes the past conduct of the offender or not?

(b) Whether under the principle of Fasad-Fil-Arz, the compounding of right of Qisas shall be subject to the provision of section 311 PPC? Please explain.

(10 + 10 Marks)

PART-II

Q. No. 5: What are the precautions which a court is required to take before recording confessional statement.
(20Marks)

Q. No. 6: Define the following: (5x4=20 Marks)

- | | |
|----------------------|-------------------------|
| a) Complaint | b) Inquiry |
| c) Investigation | d) Judicial Proceedings |
| e) Public Prosecutor | |

Q. No. 7: How would you explain the term "compounding of offences" under the Code of Criminal Procedure, 1898. In case the accused is convicted and an appeal is pending then whether composition of offences can be allowed and by whom, and whether the accused can be acquitted of the charge under which he was challaned?
(20Marks)

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- Q. No. 8:** Commutation is the substitution of one form of punishment, whereas, the remission implies the reducing of period of sentence without changing its character. Please discuss the powers to suspend and remit sentences and to commute sentences with reference to the relevant law. **(20Marks)**

PART-III

- Q. No. 9:** Please define Land Revenue. How the arrears of land revenue can be proved along with the procedure for the collection of land revenue as arrears? **(20Marks)**

- Q. No. 10: Write short notes on the following: (5x4=20 Marks)**

- | | |
|----------------------|----------------------|
| a) Agricultural year | b) Assessment circle |
| c) Defaulter | d) Holding |
| e) Estate | |



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